

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1496

By: Gollihare of the Senate

and

Bashore of the House

11 An Act relating to the Oklahoma State Bureau of
12 Investigation; amending 74 O.S. 2021, Sections 150.5,
13 150.7, and 150.11, which relate to investigations,
14 powers and duties of the Director of the Oklahoma
15 State Bureau of Investigation, and evidentiary
16 property; clarifying confidentiality provisions;
17 stating certain records not subject to subpoena or
18 subpoena duces tecum; authorizing disclosure of
19 certain statistical data; authorizing Director to
20 enter into certain agreements; authorizing Director
21 to digitally store and dispose of certain records;
22 authorizing Director to accept certain monies to be
23 deposited in certain fund; authorizing certain
24 evidence disposal; requiring certain affidavit;
 clarifying property sale provisions; permitting
 refusal to sell property under certain circumstance;
 updating statutory language and references; and
 providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 74 O.S. 2021, Section 150.5, is
2 amended to read as follows:

3 Section 150.5. A. 1. Oklahoma State Bureau of Investigation
4 investigations not covered under Section 150.2 of this title shall
5 be initiated at the request of the following persons:

- 6 a. the Governor,
- 7 b. the Attorney General,
- 8 c. the Council on Judicial Complaints upon a vote by a
9 majority of the Council,
- 10 d. the chair of any ~~Legislative Investigating Committee~~
11 legislative investigating committee which has been
12 granted subpoena powers by resolution, upon
13 authorization by a vote of the majority of the
14 ~~Committee~~ committee,
- 15 e. the Director ~~of the Department~~ of Human Services, or
16 designee, as authorized by Section 1-2-105 of Title
17 10A of the Oklahoma Statutes, or
- 18 f. a district court judge as authorized by Section 1-2-
19 103 of Title 10A of the Oklahoma Statutes.

20 2. Requests for investigations shall be submitted in writing
21 and shall contain specific allegations of wrongdoing under the laws
22 of ~~the State of Oklahoma~~ this state.

1 B. The Governor may initiate special background investigations
2 with the written consent of the person who is the subject of the
3 investigation.

4 C. The chair of any Senate committee which is fulfilling the
5 statutory responsibility for approving nominations made by the
6 Governor may, upon a vote by a majority of the committee and with
7 the written consent of the person who is to be the subject of the
8 investigation, initiate a special background investigation of any
9 nominee for the Oklahoma Horse Racing Commission as established by
10 Section 201 of Title 3A of the Oklahoma Statutes or any nominee for
11 the ~~Board of Trustees~~ board of trustees of the Oklahoma Lottery
12 Commission as established by Section 704 of Title 3A of the Oklahoma
13 Statutes. The Bureau shall submit a report to the committee within
14 thirty (30) days of the receipt of the request. Any consideration
15 by the committee of a report from the Bureau shall be for the
16 exclusive use of the committee and shall be considered only in
17 executive session.

18 D. 1. All records relating to any investigation being
19 conducted by the Bureau, including any records of laboratory
20 services provided to law enforcement agencies pursuant to paragraph
21 1 of subsection A of Section 150.2 of this title, shall be
22 confidential and privileged and shall not be open to the public or
23 to the Oklahoma State Bureau of Investigation Commission except as
24 provided in Section 150.4 of this title; provided, however, officers

1 and agents of the Bureau may disclose, at the discretion of the
2 Director of the Oklahoma State Bureau of Investigation, such
3 investigative information to:

- 4 a. officers and agents of federal, state, county, tribal,
5 or municipal law enforcement agencies and to ~~district~~
6 ~~attorneys, in the furtherance of criminal~~
7 ~~investigations~~ prosecutorial entities for the purpose
8 of criminal investigations and prosecutions within
9 their respective jurisdictions,
- 10 b. employees of the Department of Human Services in the
11 furtherance of child abuse investigations, and
- 12 c. appropriate accreditation bodies for the purposes of
13 the Bureau's obtaining or maintaining accreditation.

14 2. Any unauthorized disclosure of any information contained in
15 the confidential files of the Bureau, not otherwise prepared for the
16 purpose of statistical data as referenced in this section, shall be
17 a misdemeanor. The person or entity authorized to initiate
18 investigations in this section, and the Attorney General in the case
19 of investigations initiated by the Insurance Commissioner, shall
20 receive a report of the results of the requested investigation. The
21 person or entity requesting the investigation may give that
22 information only to the appropriate prosecutorial officer or agency
23 having statutory authority in the matter if that action appears
24 proper from the information contained in the report, and shall not

1 reveal or give such information to any other person or agency.

2 Violation hereof shall be deemed willful neglect of duty and shall
3 be grounds for removal from office.

4 3. Investigative records of the Bureau shall not be subject to
5 a subpoena or subpoena duces tecum in any private civil action
6 unless, after reasonable notice to the Bureau, or any authorized
7 governmental agency that has an interest in the information, after a
8 hearing, wherein the party issuing the subpoena demonstrates and a
9 court finds that the need for the record or records sought
10 substantially outweighs the presumption of the confidentiality of
11 such record or records and, further, upon making such a finding, a
12 court has determined that disclosure of the record or records would
13 not jeopardize any investigation by the Bureau or authorized
14 governmental agency that has an interest in the information. In the
15 event the court orders the dissemination of any record or part of a
16 record, the court shall enter a protective order consistent
17 herewith.

18 E. It shall not be a violation of this section to reveal
19 otherwise confidential information to outside agencies or
20 individuals who are providing interpreter services, questioned
21 document analysis, laboratory services, or other ~~specialized~~
22 services that are necessary ~~in the~~ to or that may provide assistance
23 ~~of in~~ Bureau investigations. Individuals or agencies receiving the
24 confidential and investigative information or records or results of

1 laboratory services provided to the Bureau by those agencies or
2 individuals, shall be subject to the confidentiality provisions and
3 requirements established in subsection D of this section.

4 F. It shall not be a violation of this section to reveal for
5 training or educational purposes otherwise confidential information
6 from records relating to any investigation previously conducted by
7 the Bureau, including any records of laboratory services provided to
8 law enforcement agencies pursuant to paragraph 1 of subsection A of
9 Section 150.2 of this title, so long as ten (10) or more years have
10 passed since the production of the information or record or such
11 information or record relates to an investigation that is closed by
12 way of conviction or plea of guilty or nolo contendere.

13 G. It shall not be a violation of this section to reveal
14 otherwise confidential information from records relating to any
15 investigation being conducted by the Bureau, including any records
16 of laboratory services provided to law enforcement agencies pursuant
17 to paragraph 1 of subsection A of Section 150.2 of this title or to
18 the public, provided⁷ release of the confidential information has
19 been authorized by the Director of the Bureau for the purposes of
20 developing or obtaining further information reasonably necessary to
21 the successful conclusion of a criminal investigation being
22 conducted by the Bureau or authorized by the Director of the Bureau
23 for the purpose of advising crime victims or family representatives
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1 of homicide victims regarding the status of a pending investigation
2 or to provide a summary of a closed investigation when necessary.

3 H. The State Treasurer shall initiate a complete background
4 investigation of the positions with the written consent of the
5 persons who are the subject of the investigation pursuant to
6 subsection I of Section 71.1 of Title 62 of the Oklahoma Statutes.
7 The Bureau shall advise the State Treasurer and the ~~Cash Management~~
8 ~~and Investment Oversight Commission~~ Invest in Oklahoma Board in
9 writing of the results of the investigation.

10 I. The Bureau may report statistical data that does not include
11 personal information to law enforcement and the public. As
12 authorized by the Director, the Bureau may also enter into
13 agreements with federal, state, county, tribal, or municipal law
14 enforcement agencies for the dissemination of otherwise confidential
15 information from investigations or laboratory services conducted by
16 the Bureau where the purpose of the information disseminated is in
17 furtherance of criminal investigations and crime prevention.

18 SECTION 2. AMENDATORY 74 O.S. 2021, Section 150.7, is
19 amended to read as follows:

20 Section 150.7. The Director of the Oklahoma State Bureau of
21 Investigation shall have the following powers, duties, and
22 responsibilities:

23 1. To appoint or dismiss a Deputy Director to assist in the
24 administration of the Bureau;

1 2. To supervise the maintaining of all reports and records of
2 the Bureau and to promulgate administrative rules concerning the
3 destruction and retention of such records. Such records shall not
4 be transferred to the custody or control of the Archives and Records
5 Commission or be subject to the provisions of Section 590 of Title
6 21 of the Oklahoma Statutes or the Records Management Act. The
7 Director may, pursuant to adopted and promulgated administrative
8 rule, order destruction of records deemed to be no longer of value
9 to the Bureau, excluding criminalistic and investigative records
10 which shall forever be kept and maintained. The Director may cause
11 any or all original papers or records kept by the Bureau to be
12 digitally scanned or imaged and stored on a computer or digital
13 storage medium in lieu of retention of the original records or
14 papers. However, the digitally stored records or papers shall be an
15 accurate and complete reproduction of the original papers or records
16 and stored in a conveniently accessible manner. Following the
17 scanning, imaging, and digital storage of the original records or
18 papers, the Director may authorize the disposal, archival storage,
19 or destruction of the original records or papers;

20 3. To report to the Commission at each regular meeting, or as
21 directed by the Commission, the current workload of the Bureau.
22 Such reports shall be submitted by category of the persons or
23 entities authorized to initiate investigations as provided for in
24 subsection A of Section 150.5 of this title, and any other category

1 the Commission may request which does not violate the
2 confidentiality restrictions imposed in Sections 150.1 through ~~152.9~~
3 152.12 of this title. Such reports shall contain the following
4 information:

- 5 a. ~~what~~ the types of investigations that are pending,
- 6 b. ~~what~~ the new types of investigations that have been
7 opened,
- 8 c. ~~what~~ the types of investigations that have been
9 closed, and
- 10 d. ~~what~~ the criminal charges that have been filed as a
11 result of Bureau investigations.

12 The reports shall not contain any information on the individual
13 subjects of the investigation or persons questioned in connection
14 with an investigation. These reports shall be open for public
15 inspection;

16 4. To designate positions, appoint employees, and fix salaries
17 of the Bureau, other than the salaries established by ~~subsection A~~
18 ~~of~~ Section 150.6a of this title, and to authorize the payment of
19 necessary certification expenses for the employees;

20 5. To authorize the purchase and issuance of uniforms for all
21 law enforcement officers, criminalists, and other personnel of the
22 Bureau as designated by the Director and to purchase and issue
23 necessary equipment for all employees of the Bureau. All uniforms
24 and equipment shall be used only in the performance of the official

1 duties of the officers, criminalists, or other personnel and shall
2 remain the property of the Bureau except as otherwise provided by
3 law;

4 6. To accept gifts, bequests, devises, contributions, and
5 grants, whether public or private, including funds from federal and
6 state agencies, or funds from any other source for use in furthering
7 the operations of the Bureau. All monies received by the Director
8 pursuant to this subsection shall be deposited to the credit of the
9 OSBI Revolving Fund;

10 7. To enter into local cooperative agreements with local law
11 enforcement agencies for the purpose of appointing affiliate task
12 force agents to assist the Bureau in the investigation of major
13 crimes under the jurisdiction of the Bureau. Affiliate task force
14 agents shall be employees and commissioned law enforcement officers
15 of the local law enforcement agency entering into agreement with the
16 Bureau and shall not be employees of the Bureau. Affiliate task
17 force agents shall have general peace officer powers and the
18 authority to arrest persons throughout the state while serving as an
19 affiliate task force agent. Affiliate task force agents serve
20 solely at the discretion and will of the Director. The Director may
21 renew, suspend, or revoke any agreement appointing an affiliate task
22 force agent at any time; and

23 ~~7.~~ 8. To enter into interagency transfers with the Oklahoma
24 Highway Patrol, the Oklahoma State Bureau of Narcotics and Dangerous

1 Drugs Control, and the ~~Oklahoma~~ Alcoholic ~~Beverages~~ Beverage Laws
2 Enforcement Commission as provided for in ~~Section 1 of this act~~
3 Section 11000 of this title.

4 SECTION 3. AMENDATORY 74 O.S. 2021, Section 150.11, is
5 amended to read as follows:

6 Section 150.11. A. ~~All~~ Except as provided for in Section
7 1024.4 of Title 21 of the Oklahoma Statutes, all property which
8 comes into the possession of the Oklahoma State Bureau of
9 Investigation (OSBI), whether the same is stolen, embezzled, or
10 otherwise, which the Bureau has held for at least one (1) year
11 unless ~~said~~ the property is perishable, may be disposed of by order
12 of an Oklahoma County district court if the owner or owners of ~~said~~
13 the property are unknown or have not claimed the same. The Director
14 of the Oklahoma State Bureau of Investigation shall then be
15 authorized to sell, deposit, donate, destroy, or otherwise dispose
16 of such property or any part thereof which is no longer needed to be
17 held as evidence or otherwise used in connection with any
18 litigation.

19 B. 1. If cash or other legal tender is the subject of the
20 action, the Director shall file a petition in the district court of
21 Oklahoma County requesting authority to forfeit and deposit the
22 funds. The petition shall include the following information:

23 a. description of the property,
24

- 1 b. approximate date that the property came into
2 possession of the Director, and
3 c. the names of the owner or owners, if known.

4 2. Upon the filing of the petition, notice of at least ten (10)
5 days shall be given to each known owner by the Director of the OSBI
6 by mailing a copy of the petition and notice of hearing to the last-
7 known address of each owner by certified mail.

8 3. Notice of the hearing shall also be posted at the Oklahoma
9 County courthouse at the regular place assigned for the posting of
10 legal notices and in the public lobby at OSBI headquarters.

11 4. If no owner appears and establishes ownership to the cash or
12 legal tender, the court shall enter an order authorizing the
13 forfeiture of the funds to the OSBI. All monies forfeited shall be
14 deposited into the OSBI Revolving Fund.

15 C. 1. For disposition of all other seized property, the
16 Director shall file a petition in the district court of Oklahoma
17 County requesting authority to conduct a sale of, or otherwise
18 dispose of, the property as provided herein. The petition shall
19 include the following information:

- 20 a. description of the property,
21 b. approximate date that the property came into the
22 possession of the Director, and
23 c. the names of the owner or owners, if known.

1 2. Upon the filing of the petition, notice of at least ten (10)
2 days shall be given to each known owner by the Director of the OSBI
3 by mailing a copy of the petition and notice of hearing by certified
4 mail to the last-known address of each owner. An affidavit of
5 notice being sent shall be filed with the court by a representative
6 of the OSBI.

7 3. Notice of the hearing shall also be posted at the Oklahoma
8 County courthouse at the regular place assigned for the posting of
9 legal notices and in the public lobby at OSBI headquarters.

10 4. If no owner appears and establishes ownership to the
11 property, the court ~~shall~~ may enter an order authorizing the
12 Director to sell the property at public auction or Internet auction,
13 which may include online bidding, to the highest bidder after notice
14 of at least five (5) days of the auction has been given by
15 publication in one issue of a legal newspaper of record in Oklahoma
16 County. If the property is offered for sale at public auction,
17 including an Internet auction, and no bid is received that exceeds
18 fifty percent (50%) of the fair-market value of the property, such
19 value to be announced prior to the sale, the Director may refuse to
20 sell the item pursuant to any bid received.

21 5. ~~The~~ In the event of the sale of the property, the Director
22 shall make a return of sale, and when confirmed by the court, the
23 order confirming the sale shall vest title of the property to the
24

1 purchaser. The money received from the sale shall be deposited in
2 the OSBI Revolving Fund.

3 SECTION 4. This act shall become effective November 1, 2026.
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5 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
6 OVERSIGHT, dated 04/14/2026 - DO PASS.
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